

Tentative Rulings for August 20, 2026

Department PS1

To request oral argument, you must notify Judicial Secretary Molly Frabotta at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVPS2502805	DAVIS VS FORD MOTOR COMPANY, A DELAWARE CORPORATION	PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET ONE, FROM DEFENDANT FORD MOTOR COMPANY; AND REQUEST FOR SANCTIONS

Tentative Ruling: A party may file a motion compelling further answers to requests for production if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P. § 2031.310.)

For requests for production, a response must contain a statement of compliance, an inability to comply, or objection. (C.C.P. § 2031.210(a).) A statement of compliance shall state that the production “will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (C.C.P. § 2031.220.) A statement of inability to comply shall state that a diligent search and a reasonable inquiry has been made to comply, the reason for the inability to comply, and the name and address of any person/organization that may have the documents. (C.C.P. § 2031.230.) Specifically, a statement of inability to comply shall “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party,” and shall also “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (*Id.*)

In a motion to compel further responses as to document requests, the moving party must state specific facts demonstrating good cause justifying the discovery sought. (C.C.P. § 2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (*Kirkland v. Superior Court (Guess? Inc.)* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production “is met simply by a fact-specific showing of relevance.” (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. § 2017.010.)

To prevail on a claim under the Song-Beverly Act, Plaintiffs must prove a nonconformity with a vehicle that substantially impaired its use, value, or safety that Defendant or its authorized representatives failed to repair after a reasonable number of attempts. (*Oregel v. Am. Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094.) The Song-Beverly Act also provides a right of action to recover damages and other relief if the vehicle was sold with a known defect. (Civ. Code § 1794(a); *Mexia v. Rinker Boat Co., Inc.* (2009) 17 Cal.App.4th 1297, 1304-05 (implied warranty of merchantability).)

Under the Song-Beverly Act, a “manufacturer has an affirmative duty to replace a vehicle or to make restitution to the buyer if the manufacturer is unable to repair the new vehicle after a reasonable number of repair attempts.” (*Lukather v. General Motors, LLC* (2010) 181 Cal.App.4th 1041, 1050.) Willful failure to comply with that duty subjects a manufacturer to a civil penalty of up to twice the amount of actual damages. (Civ. Code § 1794(c).) Critical to the showing of “willfulness” is whether the manufacturer knew of the alleged defect, including not only through evidence that the vehicle was not repaired after a reasonable number of attempts, but also through internal investigations and warranty records showing that other consumers were similarly affected. (*Jensen v. BMW of N. Am., Inc.* (1995) 35 Cal.App.4th 112, 136 [in assessing whether a violation is willful, the jury is entitled to consider, among other things, whether “the manufacturer knew the vehicle had not been repaired within a reasonable period or after a reasonable number of attempts”]; *Oregel, supra*, 90 Cal.App.4th at 1104-1105 [evidence that defendant-manufacturer was aware of unsuccessful repair attempts can support civil penalty liability]; *Troensegaard v. Silvercrest Indus., Inc.* (1985) 175 Cal.App.3d 218, 226 [noting that defendant manufacturer’s possession of a report on the defective condition was sufficient to support civil penalty liability]; *Krotin v. Porsche Cars North America, Inc.* (1995) 38 Cal.App.4th 294, 303 [noting an “automobile manufacturer need not read minds to determine which vehicles are defective; it need only read its dealers’ service records”].)

Request for Production Nos. 16-18:

Request for Production Nos. 16-18 sought each written warranty that Defendant provided for the Vehicle, all documents constituting Defendant’s warranty claims policies and procedures from 2023 to the present, and Defendant’s workshop manual for the Vehicle.

Defendant responded that it “will comply with this Request, in part, and produce all documents responsive to this Request that are located following a reasonable and diligent search and to which no objection is made.” Defendant then referred Plaintiff to the New Vehicle Limited Warranty Guide for the 2023 Ford Bronco vehicle, and produced the Warranty Policy and Procedure Manuals applicable to 2023 to the present subject to a protective order.

Request for Production Nos. 20-30:

Request for Production Nos. 20-30 sought documents describing Defendant’s policies, procedures, instructions, training materials, scripts, and flow charts for evaluating and responding to California consumer complaints about its vehicles and determining whether a vehicle is eligible for repurchase, including what constitutes a “repair presentation,” “non-conformity,” “substantial impairment,” “reasonable number of repair attempts,” and a time frame to respond to a vehicle repurchase request, from 2023 to the present.

Defendant objected on grounds of attorney-client and/or work product privilege. However, the party asserting the privilege must present facts supporting a prima facie claim of privilege; only then does the opposing party have the burden of showing that the privilege does not apply, an exception applies, or there was a waiver. (*Oxy Resources California, LLC v. Superior Court* (2004) 115 Cal.App.4th 874, 894.) Defendant provides no evidence that such a privilege applies—it merely speculates such in the opposing

memorandum. Here, the requested documents are relevant to show whether Defendant was in compliance with Song-Beverly.

Defendant contends that it produced Warranty Policy and Procedure Manuals from 2023 to the present, Customer Relationship Center (“CRC”) policies and procedures applicable to 2025, and the RAV Policy and Procedure Manual applicable to 2025. (Opp., p. 9.) However, Plaintiff contends that it sought documents from 2023 through the present, and asserts that Defendant’s recent document production does not contain the RAV Policy and Procedure Manual applicable to 2025. (Reply, p. 1.) In sur-reply, Defendant contends that it served the RAV Policy and Procedure Manual for 2023 on August 12, 2026, which Defendant asserts is the most recent manual available. (Perez, Jr. Decl. ¶ 4.) However, there is no evidence that Defendant has produced the CRC policies and procedures that were applicable from 2023 through 2025.

Request for Production Nos. 47 and 50-59:

Request for Production Nos. 47 and 50-59 seek documents reflecting Defendant’s preservation efforts and backup procedures for business data.

However, these requests do not seek substantive evidence bearing on Plaintiff’s Song-Beverly claims. Rather, they seek information about how Defendant conducted its own discovery. “Discovery into another party’s discovery process is disfavored.” (*Jensen v. BMW of N. Am., LLC* (S.D. Cal. 2019) 328 F.R.D. 557, 566.) Although *Jensen* is a federal authority, it is persuasive given the “similarity of California and federal discovery law.” (*Liberty Mut. Ins. Co. v. Sup. Ct.* (1992) 10 Cal.App.4th 1282, 1288.)

Under *Jensen*, meta-discovery may be appropriate where there is a legitimate question about the completeness of a party’s production. (*Jensen, supra*, 328 F.R.D. at 566 [“Generally, courts will only permit such discovery where there is some indication that a party’s discovery has been insufficient or deficient.”].) However, Plaintiff has not made that showing here.

Defendant states that it has already fully complied and substantively responded to Plaintiff’s first sets of voluminous RFPs and SROGs, producing all the responsive documents related to the Subject Vehicle and necessary to pursue a viable Song-Beverly claim. (Opp., pp. 4-5.) Plaintiff has identified no concrete evidence of destruction or withholding in this case.

Plaintiff’s basis for questioning production completeness is counsel’s observations, through their routine litigation against defense counsel on Song-Beverly actions, of Defendant’s “occasional production of inconsistent document sets across various cases.” (See Motion, p. 1.) However, this is insufficient. Disputes about the scope or adequacy of Defendant’s productions in other, unrelated lemon law cases filed by other plaintiffs are not relevant to whether Defendant’s production in this case is complete or adequate. With no showing of what was produced here, what was omitted, or wherein any discrepancy lies, Plaintiff has not satisfied the threshold *Jensen* requires to justify meta-discovery. Permitting it on this basis would allow discovery-on-discovery as a matter of course in every Song-Beverly case where the same firms are on opposite sides, a result *Jensen* expressly cautions against.

Plaintiff cites *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243 for the proposition that discovery into a party's document retention policies is appropriate to assess whether a reasonable search was conducted. (Motion, p. 7.) However, Plaintiff's reliance on *San Benito* is misplaced. That case arose in a Public Records Act enforcement proceeding where the reasonableness of the agency's document search was the central merits question. In that narrow context, the court upheld discovery into the County's retention policies because they could "inform [the plaintiff's] assessment of the reasonableness of the County's search." (*Id.* at 258.) Here, Plaintiff's Song-Beverly claims turn on whether the Subject Vehicle had warranted defects that substantially impaired its use, value, or safety, and whether Defendant failed to conform the vehicle to warranty after a reasonable number of repair attempts. The adequacy of Defendant's document search is not an element of any of those claims. Thus, *San Benito* is inapposite.

Sanctions:

Code of Civil Procedure sections 2030.300(d) and 2031.310(h) provide that the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or a demand for production unless it finds the party or attorney acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Here, the imposition of sanctions would be unjust due to the mixed results and because Plaintiff filed the motions to compel before signing the protective order that covered several of the documents at issue.

Motion to Compel Further Responses to Request for Production, Set One, as to Requests #16-18, 47, 50-59 DENIED.

Motion to Compel Further Responses to Request for Production, Set One, as to Requests #20-30 GRANTED.

Plaintiff to provide verified, code-compliant responses and responsive documents, without objection, within 30 days of the date of this Order.

Plaintiff's Request for Sanctions DENIED.

Trial Setting Conference confirmed for November 2, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2502805	DAVIS VS FORD MOTOR COMPANY, A DELAWARE CORPORATION	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES FROM DEFENDANT FORD MOTOR COMPANY, AND REQUEST FOR SANCTIONS BY GLENN DAVIS

Tentative Ruling: Upon a timely motion to compel further responses to interrogatories, the responding party has the burden to justify any objection or failure to fully respond to the interrogatory. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.) "Each answer in a response to interrogatories shall be as complete and

straightforward as the information reasonably available to the responding party permits.” (C.C.P. § 2030.220(a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (C.C.P. § 2030.220(b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information....” (C.C.P. § 2030.220(c).)

Special Interrogatory Nos. 10 and 26:

Nos. 10 and 26 sought all facts supporting Defendant’s contention that the Vehicle did not qualify for repurchase, and to describe all training Defendant provided from 2023 to the present regarding how to evaluate a prelitigation repurchase request under Song-Beverly. In response, Defendant referred Plaintiff to certain documents that it had or would produce. However, “[e]ach answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits.” (C.C.P. § 2030.220(a).) It is improper to refer to other documents. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-784.)

Special Interrogatory Nos. 44 and 45:

These special interrogatories sought the repair rates for “every component” that was repaired under warranty for all 2023 Ford Broncos, as well as the repair rate for all 2023 Ford Broncos. However, Plaintiff fails to show that the requested rates involved repairs or components that were the same as the ones at issue with the Vehicle in dispute. Accordingly, the interrogatories are overbroad and not relevant.

Special Interrogatory No. 47 and 49-58:

Nos. 47 and 49-58 sought meta-discovery, i.e., a description of Defendant’s preservation efforts and retention policies. As further discussed above in the analysis for Request for Production Nos. 47 and 50-59, Plaintiff has not satisfied the threshold *Jensen* requires to justify meta-discovery.

Motion to Compel Further Responses to Special Interrogatories, Set One, as to #10 and 26 GRANTED.

Motion to Compel Further Responses to Special Interrogatories, Set One, as to #44, 45, 47 and 49-58 #20-30 DENIED.

Plaintiff to provide verified, code-compliant responses, without objection, within 30 days of the date of this Order.

Plaintiff’s Request for Sanctions DENIED.

Trial Setting Conference confirmed for November 2, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2505371	WARD VS ALBERTSONS COMPANIES, INC.	MOTION TO COMPEL PLAINTIFF'S RESPONSES TO SPECIAL INTERROGATORIES AND REQUEST FOR SANCTIONS BY ALBERTSONS LLC

Tentative Ruling:

No Opposition filed by Plaintiff Ward.

Motion to Compel Plaintiff's Responses to Special Interrogatories GRANTED.

Plaintiff to provide verified, code-compliant responses, without objection, within 30 days of the date of this Order.

Sanctions in the amount of \$410 (\$350/hour for 1.0 hours + \$60 costs) AWARDED against Plaintiff Ward. Sanctions to be paid to counsel for Defendant within 45 days.

Case Management Conference continued to November 3, 2026.

Plaintiff ordered to file new and updated Case Management Statement 10 days in advance of hearing regarding status of Discovery/ Alternative Dispute Resolution/ compliance of CRC 3.724 & LR 3218. Failure to do so will result in sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2505371	WARD VS ALBERTSONS COMPANIES, INC.	MOTION TO DEEM ADMITTED REQUEST FOR ADMISSIONS PROPOUNDED TO PLAINTIFF AND REQUEST FOR SANCTIONS BY ALBERTSONS LLC

Tentative Ruling:

No Opposition filed by Plaintiff Ward.

Motion to Deem the Truth of Matter Admitted as Specified in Requests for Admissions GRANTED.

The truth of the matters specified in Defendant's Request for Admission are deemed admitted.

Sanctions in the amount of \$410 (\$350/hour for 1.0 hours + \$60 costs) AWARDED against Plaintiff Ward. Sanctions to be paid to counsel for Defendant within 45 days.

Case Management Conference continued to November 3, 2026.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2505371	WARD VS ALBERTSONS COMPANIES, INC.	MOTION TO COMPEL PLAINTIFF'S RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS AND REQUEST FOR SANCTIONS BY ALBERTSONS LLC

Tentative Ruling:

No Opposition filed by Plaintiff Ward.

Motion to Compel Plaintiff's Responses to Request for Production GRANTED.

Plaintiff to provide verified, code-compliant responses and responsive documents, without objection, within 30 days of the date of this Order.

Sanctions in the amount of \$410 (\$350/hour for 1.0 hours + \$60 costs) AWARDED against Plaintiff Ward. Sanctions to be paid to counsel for Defendant within 45 days.

Case Management Conference continued to November 3, 2026.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2505371	WARD VS ALBERTSONS COMPANIES, INC.	MOTION TO COMPEL PLAINTIFF'S RESPONSES TO FORM INTERROGATORIES AND REQUEST FOR SANCTIONS BY ALBERTSONS LLC

Tentative Ruling:

No Opposition filed by Plaintiff Ward.

Motion to Compel Plaintiff's Responses to Form Interrogatories GRANTED.

Plaintiff to provide verified, code-compliant responses, without objection, within 30 days of the date of this Order.

Sanctions in the amount of \$410 (\$350/hour for 1.0 hours + \$60 costs) AWARDED against Plaintiff Ward. Sanctions to be paid to counsel for Defendant within 45 days.

Case Management Conference continued to November 3, 2026.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2509119	PADILLA VS TOYOTA MOTOR SALES USA INC., A CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT OF MARY QUITQUIT PADILLA

Tentative Ruling: “[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (*Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading or from matters that are judicially noticeable. (*Donabedian v. Mercury Ins.* (2004) 116 Cal.App.4th 968, 994.) For purposes of ruling on a demurrer, all material facts pleaded are assumed to be true, but the court does not assume the truth of contentions, deductions, or conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

For statutory claims, including those under the Song-Beverly Act, the plaintiff must plead facts demonstrating a right to recover under the statute with particularity. (*Hawkins v. TACA Int’l Airlines, S.A.* (2014) 223 Cal.App.4th 466, 478; *see also Covenant Care, Inc. v. Sup. Ct.* (2004) 32 Cal.4th 771, 790.) “[S]imply parroting the language of [a statutory cause of action] in the complaint is insufficient to state a cause of action under the statute.” (*Hawkins, supra*, 223 Cal.App.4th at 478.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *see also Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037.) The burden is on the complainant to show that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Breach of Express Warranty 1st Cause of Action:

To state a claim for breach of express warranty under the Song-Beverly Act, Plaintiff must allege facts supporting four elements: (1) a defect or nonconformity covered by warranty that substantially impairs the use, value, or safety of the vehicle; (2) presentation of the vehicle to an authorized repair representative; (3) failure to repair after a reasonable number of attempts; and (4) failure to promptly replace or repurchase the vehicle. (*Carver v. Volkswagen Grp. of Am., Inc.* (2024) 107 Cal.App.5th 864, 879 [internal citations omitted].)

Defendant argues that the SAC is “devoid of particularity” and fails to allege “[w]hat specifically were the nonconformities to warranty? When specifically did those nonconformities manifest? How specifically do those nonconformities substantially impair the use, value or safety of the [Vehicle]? To which authorized repair facilities did Plaintiff deliver the Tundra? And when? How many repair attempts were made?” (Def.’s Demurrer 7:10–16.) Defendant further argues that the SAC’s theory based on recalls fails because, under California authority, recalls and technical service bulletins do not constitute admissions of defect. (*Id.* at 8:13–9:27.)

In *Gutierrez v. CarMax Auto Superstores California* (2018) 19 Cal.App.5th 1234, the California Court of Appeal held: “[T]he existence of a safety recall does not adequately allege a substantial safety hazard existed.” (*Id.* at 1248.) A plaintiff must allege that her

vehicle “actually exhibited the alleged defect,” not merely that it was at risk. (*Taragan v. Nissan N. Am., Inc.* (N.D. Cal. June 20, 2013) 2013 WL 3157918, at *4 [internal quotation omitted].)

Plaintiff responds that Defendant’s “own admissions regarding the existence and seriousness of the defects” via the recall filings, including a NHTSA Defect Information Report filed August 10, 2023, regarding the fuel-tube/fire risk, and a Defect Information Report filed May 30, 2024, regarding engine machining debris, create “at minimum, triable issues regarding the existence of a nonconformity affecting the safety and value of the Subject Vehicle.” (Pl.’s Opp. 4:11–19.) Plaintiff contends that paragraphs 7 through 11 of the SAC identify “two latent engine defects at the time of sale,” and that the recalls supply both causation (defective parts increasing the risk of fire and engine failure) and harm (loss of value, loss of use during repair, and loss of faith in the vehicle’s safety and function). (*Id.* at 6:5–20.)

As Defendant argues, however, the SAC suffers from two independent and fatal pleading defects. First, the SAC does not allege that Plaintiff’s Vehicle actually manifested the recalled conditions. The SAC alleges only that Plaintiff “took the vehicle to . . . have the aforementioned recalls performed” (SAC ¶ 10), not that she experienced fuel leaks, engine performance problems, or any other symptom of the recalled conditions. Under *Gutierrez*, the existence of a safety recall, standing alone, does not adequately allege that a substantial safety hazard existed in Plaintiff’s particular vehicle. (*Gutierrez, supra*, 19 Cal.App.5th at 1248.) An admission by Defendant that certain vehicles in a model line may fail to comply with federal safety standards is not the same as an allegation that Plaintiff’s Vehicle manifested a nonconformity substantially impairing its use, value, or safety. The recall references and NHTSA filings at paragraphs 8 and 9 of the SAC, therefore, do not cure the deficiency the Court previously identified.

Second, and independently, the SAC affirmatively pleads facts that negate the “failure to repair after a reasonable number of attempts” element. (See *Carver, supra*, 107 Cal.App.5th at 879.) The SAC alleges that the Vehicle was presented on January 6, 2025, and that both recalls were “completed” on January 24, 2025—the first by installation of “a new fuel tube, clips, and clamps,” and the second by “removal and replacement of the original engine assembly.” (SAC ¶¶ 10–12.) As Defendant correctly notes, this is the opposite of what is required for a breach of express warranty cause of action under Song-Beverly. The SAC’s general allegation that defects “were presented to Defendant’s authorized repair facilities” (SAC ¶ 20) is conclusory and is contradicted by the SAC’s specific factual allegations describing a single repair visit in which both recalls were resolved (SAC ¶¶ 10–12).

The SAC’s causation and harm allegations are also conclusory. The SAC recites only that “[a]s a direct and proximate result of said violations of the Song-Beverly Act, Plaintiff has sustained, and continues to sustain, actual, incidental and consequential damages in the approximate amount of the purchase price according to proof at trial.” (SAC ¶ 23.) This boilerplate language, without supporting factual allegations connecting any specific defect to specific harm, is insufficient. The factual detail offered in Plaintiff’s opposition, such as “time down,” “loss of use,” “loss of faith,” appears in counsel’s brief but is not pleaded in the SAC with the specificity required of a statutory cause of action. (See Pl.’s Opp. 6:5–20.)

Breach of Implied Warranty 2nd Cause of Action:

To state a claim for breach of the implied warranty of merchantability under Song-Beverly, a plaintiff must allege facts showing the product was not “fit for the ordinary purposes for which such goods are used” and must “allege facts establishing the generic elements of causation and harm.” (*Gutierrez, supra*, 19 Cal.App.5th at 1247–48.) “The buyer of consumer goods must plead he or she was injured or damaged by the alleged breach of the implied warranty of merchantability.” (*Id.* at 1246–47.)

Defendant argues that the SAC “merely states ‘the vehicle has malfunctions, and nonconformities render the Vehicle unfit for the ordinary purposes for which it is used, and it would not pass without objection in the trade’ . . . without pleading any injury or damage and without stating facts showing causation.” (Def.’s Demurrer 7:26–8:2 [citing SAC ¶ 30].) Defendant’s reply observes that this identical boilerplate language carried over verbatim from the original Complaint—the very language the Court previously held was “a conclusion of law” with “no factual detail about the alleged ‘defects, malfunctions, and nonconformities.’” (Def.’s Reply 3:8–27.)

Plaintiff responds that “[a] jury could reasonably conclude that a vehicle carrying such unresolved safety risks was not merchantable,” that “[m]erchantability does not require that a vehicle become completely inoperable,” and that vehicles may breach the implied warranty “where safety, reliability, or ordinary functionality are materially compromised.” (Pl.’s Opp. 6:16–20.) This argument is without merit for the same reasons discussed above.

As Defendant argues, the second cause of action suffers from the same pleading deficiencies as the first. The SAC alleges only that Defendant issued safety recalls and that Plaintiff presented the Vehicle to have the recalls performed, not that the Vehicle actually manifested the recalled conditions, exhibited symptoms of unmerchantability, or was unfit for ordinary purposes prior to or independent of the recall repairs. Plaintiff’s argument that the Vehicle carried “unresolved safety risks” (Pl.’s Opp. 6:18) is in tension with the SAC’s own allegation that both recalls were “completed” in a single visit on January 24, 2025 (SAC ¶¶ 11–12).

Moreover, the SAC’s causation and harm allegations are the same boilerplate the Court previously found insufficient. The recitation that “[a]s a direct and proximate result of the breach of the implied warranty of merchantability, Plaintiff has sustained, and continues to sustain, actual, incidental and consequential damages” (SAC ¶ 32), without supporting factual allegations connecting any unfitness to specific harm, does not satisfy the “generic elements of causation and harm” required by *Gutierrez*. (Pl.’s Opp. 5:27–6:3 [citing *Gutierrez, supra*, 19 Cal.App.5th at 1246–47].)

Unfair Competition Law 3rd Cause of Action:

“To bring a UCL claim, a plaintiff must show either an (1) unlawful, unfair, or fraudulent business act or practice, or (2) unfair, deceptive, untrue or misleading advertising. [Citation.] Because the UCL is written in the disjunctive, it establishes three varieties of unfair competition—acts or practices which are unlawful, or unfair, or fraudulent.” (*Adhav v. Midway Rent A Car, Inc.* (2019) 37 Cal.App.5th 954, 970 [internal quotation marks & quotations omitted].)

Defendant argues that the UCL claim fails for four independent reasons. First, a breach of warranty cannot itself serve as the “unlawful” predicate for a UCL claim. Second, because the Song-Beverly causes of action are insufficiently pled, the derivative UCL claim also fails. Third, as to the “unfair” prong, the SAC fails to identify any substantial injury Plaintiff actually suffered, alleging only that “Plaintiff could not have reasonably avoided the injury suffered herein.” (SAC ¶ 48.) Fourth, as to the “fraudulent” prong, Plaintiff fails to identify any oral misrepresentation or facts supporting a fraudulent misrepresentation.

Unlike the FAC, the SAC now separately pleads all three UCL prongs. Under the “unlawful” prong, the SAC alleges that Defendant “intentionally placed the Subject Vehicle, with defective components, into the stream of commerce” knowing the components “suffered from defects which substantially affected the vehicle’s value and safety.” (SAC ¶ 43.)

Under the “unfair” prong, the SAC alleges that Defendant failed to “provide repair facilities to service vehicles to conform to the express warranties reasonably close to where Plaintiff’s vehicle is sold” and attempted “to coerce Plaintiff and other members of the public to sign confidentiality clauses.” (SAC ¶ 46.)

Under the “fraudulent” prong, the SAC alleges consumers “were never informed of their rights pursuant to the Song-Beverly Acts standards,” and that “Defendants’ oral misrepresentations also deceived Plaintiff to believe that Plaintiff would receive a benefit by purchasing a Vehicle from them under warranty.” (SAC ¶¶ 52–53.) Plaintiff’s opposition, however, rests almost entirely on the argument that “[f]or the same reasons the first and second causes of action were sufficiently pled, they are also sufficiently incorporated into the third cause of action.” (Pl.’s Opp. 7:14–15.)

Here, each of the three UCL prongs fails as pleaded. As to the unlawful prong, to the extent it is predicated on violations of the Song-Beverly Act, it fails for the same reasons discussed above—the underlying Song-Beverly claims are not pleaded with sufficient factual particularity, and the derivative UCL claim is therefore deficient. Independently, a breach of warranty is not itself an “unlawful act” for UCL purposes absent some additional unlawful, unfair, or fraudulent character. (*Puentes v. Wells Fargo Home Mortg., Inc.* (2008) 160 Cal.App.4th 638, 645.)

As to the unfair prong, the SAC’s allegations are conclusory and lack the specific factual detail needed to state a claim. The SAC alleges that Defendant “fail[ed] to provide repair facilities . . . reasonably close to where Plaintiff’s vehicle [wa]s sold” without identifying what facility Plaintiff was directed to, where it was located, or how far Plaintiff was required to travel. (SAC ¶ 46.) The SAC alleges only that Defendant was “[t]rying to coerce Plaintiff and other members of the public to sign confidentiality clauses” (SAC ¶ 46)—a generalized allegation directed at “the public” rather than a factual account of any confidentiality clause presented to this Plaintiff, when it was presented, its terms, or how Plaintiff was harmed.

The SAC likewise fails to identify any substantial injury Plaintiff actually suffered; the conclusory allegation that Plaintiff “could not have reasonably avoided the injury suffered herein” (SAC ¶ 48) does not identify what injury was suffered or how it flows from

the alleged unfair conduct as distinct from the alleged warranty breach. Absent such specifics, the SAC does not plead an unfair business practice as to Plaintiff.

As to the fraudulent prong, the SAC's allegations of "oral misrepresentations" (SAC ¶ 53) are pleaded without the specificity required for fraud such as who made the misrepresentation, when, where, what was said, or how Plaintiff relied on it.

Leave to Amend:

This is Plaintiff's third pleading attempt, and the same core defects identified by the Court at the original Complaint stage persist in the SAC—*i.e.*, the absence of factual allegations describing what defects Plaintiff's vehicle actually manifested, when, and with what repair history. Defendant urges that leave to amend should be denied because "the facts necessary for plaintiff to assert Song-Beverly breach of warranty causes of action against TMS simply do not exist." (Def.'s Reply 4:1–2.)

Nevertheless, California courts strongly favor liberality in granting leave to amend, and denial is reserved for cases where it is clear no amendment could cure the defects. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037.) Here, there is a reasonable possibility that Plaintiff could allege, if such facts exist, that the Vehicle actually exhibited the recalled conditions, that Plaintiff presented the Vehicle for repair on multiple occasions for the same condition, or that problems persisted after the January 2025 repairs.

Defendant's Demurrer to the 1st, 2nd and 3rd Causes of Action SUSTAINED with leave to amend. Plaintiff given one final opportunity to amend. Amended complaint to be filed within 30 days.

Case Management Conference continued to November 19, 2026.